



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings

- against -

Police Officer Ariel Peralta-Yascaribay

Tax Registry No. 969283

Brooklyn Court Section

FINAL

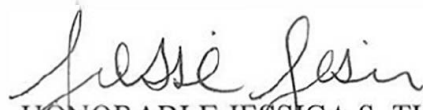
ORDER

OF

DISMISSAL
-----X

Police Officer Ariel Peralta-Yascaribay, Tax Registry No. 969283, having been served with written notice, has been tried on written Charges and Specifications numbered C-032612, as set forth on form P.D. 468-121, dated April 14, 2025 (amended on October 20, 2025), and after a review of the entire record, Respondent is found Guilty of the charged misconduct.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Ariel Peralta-Yascaribay from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE: 12/18/2025

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POLICE DEPARTMENT

December 18, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Ariel Peralta-Yascaribay :

Tax Registry No. 969283 :

Brooklyn Court Section :

Case No.

C-032612

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Timothy Marsh, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent:

Peter Brill, Esq.
Brill Legal Group, P.C.
176 Lexington Avenue, Suite O
New York, NY 10016

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 15, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer prevented an individual known to the Department from leaving the premises near where said individual resides by blocking the vehicle in which said individual was attempting to leave the premises.

A.G. 304-06, Paragraph 1

PROHIBITED CONDUCT

2. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 15, 2024, after being involved in an off-duty incident within the confines of the 112th Precinct, failed to remain at the scene.

P.G. 212-32, Paragraph 1

OFF-DUTY INCIDENTS
INVOLVING UMOs

3. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 15, 2024, after being involved in an off-duty incident within the confines of the 112th Precinct, failed to make the proper notifications to the Patrol Supervisor.

P.G. 212-32, Paragraph 2

OFF-DUTY INCIDENTS
INVOLVING UMOs

4. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 15, 2024, wrongfully utilized Department computer systems and made inquiries unrelated to official Department business.

P.G. 219-14, Paragraph 2

DEPARTMENT
COMPUTER SYSTEMS

5. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 25, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer engaged in a physical altercation with an individual known to the Department and removed said individual's cell phone from their person to prevent said individual from calling 911. (*As amended*)

A.G. 304-06, Paragraph 1

PROHIBITED CONDUCT

6. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 25, 2024, failed to safeguard his firearm, in that said firearm was left unattended in his vehicle.

A.G. 305-07, Paragraph 1

FIREARMS

7. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 25, 2024, after being involved in an off-duty incident within the confines of the 112th Precinct, failed to remain at the scene.

P.G. 212-32, Paragraph 1

OFF-DUTY INCIDENTS
INVOLVING UMOS

8. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 25, 2024, after being involved in an off-duty incident within the confines of the 112th Precinct, failed to make the proper notifications to the Patrol Supervisor.

P.G. 212-32, Paragraph 2

OFF-DUTY INCIDENTS
INVOLVING UMOS

9. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 25, 2024, wrongfully utilized Department computer systems and made inquiries unrelated to official Department business.

P.G. 219-14, Paragraph 2

DEPARTMENT
COMPUTER SYSTEMS

10. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, on or about November 25, 2024, made false statements to the Duty Captain investigating an off-duty incident.

A.G. 304-10, Paragraph 1

FALSE OR MISLEADING
STATEMENTS

11. Said Police Officer Ariel Peralta-Yascaribay, while assigned to the Brooklyn Court Section, on or about January 7, 2025, made misleading statements during an official Department interview.

A.G. 304-10, Paragraph 2

FALSE OR MISLEADING
STATEMENTS

12. Said Police Officer Ariel Peralta-Yascaribay, while off-duty and assigned to the 30th Precinct, from on or about March 3, 2024, to on or about December 4, 2024, wrongfully utilized Department computer systems and made inquiries unrelated to official Department business.

P.G. 219-14, Paragraph 2

DEPARTMENT
COMPUTER SYSTEMS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 27 and 29, 2025. Respondent, through his counsel, entered a plea of Guilty to Specification 6 (failure to safeguard his firearm), and Specifications 4, 9 and 12 (wrongfully using Department computer databases for purposes unrelated to official Department business on November 15, 2024; November 25, 2024, and during the period on or about between March 3, 2024, to December 4, 2024). In accordance with his pleas, I find him Guilty of Specifications 4, 6, 9 and 12.

Respondent entered a plea of Not Guilty to the remaining charges, Specifications 1, 2, 3, 5, 7, 8, 10 and 11. The Department called JM and Sergeant Moses Jang as witnesses. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

Having evaluated all of the evidence in this matter regarding the contested charges, I find Respondent Guilty of the remaining eight (8) specifications. I recommend that Respondent be dismissed from the New York City Police Department.

ANALYSIS

The following is a summary of the facts which are not in dispute: Respondent and Complainant, JM have been dating on and off since about April of 2024. On November 15, 2024, while Respondent and JM were broken up, Respondent went to JM's apartment building to talk to her about their relationship. Video surveillance (Department's Exhibits 2A-2D) shows that at approximately 0133 hours on November 15th, JM and her friend left JM's apartment building to go out. Respondent's car, however, was blocking her friend's vehicle, preventing them from leaving. JM told Respondent she did not want to speak with him because she was going out. At approximately

0138 hours, JM [REDACTED] called 911. (Dept. Exs. 3A, 3B) Respondent then drove away, and JM's [REDACTED] hung up mid-call. Respondent did not remain on scene or make any notifications regarding this incident. Immediately after the incident, between approximately 0138 and 0213 hours, Respondent searched the Department's database for 911 jobs related to this incident. (Dept. Exs. 10A, 10B)

Ten days later, on November 25, 2024, at approximately 0437 hours, Respondent went to JM's [REDACTED] apartment building after seeing her at a bar earlier. Respondent admitted that on this same date and time, he had his firearm in the trunk of his vehicle. Video surveillance (Dept. Exs. 6A, 6B, 6C and 6D) captured Respondent entering JM's [REDACTED] building, ringing her bell, and concealing himself in the vestibule while he waited for her to come out of her apartment. The surveillance footage does not have accompanying audio, but it shows JM [REDACTED] coming out of her apartment, into the vestibule and engaging in conversation with Respondent. JM [REDACTED] can be seen holding a phone and tapping the screen as if she were texting or making a call. Respondent then grabbed her phone, but JM [REDACTED] kept it in her possession. JM [REDACTED] attempted to move away from Respondent and eventually exited her building. Respondent followed immediately thereafter.

The video further shows that the two remained outside the building for a few minutes before JM [REDACTED] reentered the building and attempted to close the door before Respondent could enter. Respondent, however, held the door open with his foot. He then reached his hand through the opening and attempted to grab JM [REDACTED]'s phone again. Once Respondent reentered the vestibule, he took the phone from JM [REDACTED]'s grasp. A brief struggle over the phone ensued, but JM [REDACTED] eventually retrieved her phone and fled from the building. Respondent pursued and caught up to JM [REDACTED] Eventually, an unidentified male bystander

intervened on JM's [REDACTED] behalf. JM [REDACTED] was escorted back to her building by the unidentified male before she called 911. After this incident, Respondent failed to remain at the scene and did not make any notifications. Like the November 15th incident, Respondent queried the Department's database for 911 jobs related to this incident. (Dept. Exs. 11A, 11 B)

Pursuant to a 911 call that JM [REDACTED] made at approximately 0455 hours (Dept. Ex. 8A), police responded and interviewed her about the events that transpired. When the patrol supervisor arrived at approximately 0640 hours, he instructed Respondent to return to the scene. Respondent complied and was interviewed on scene by the duty captain who was investigating this off-duty incident at approximately 0717 hours. During this interview, Respondent told the duty captain that he did not know whether JM [REDACTED] called 911, even though he had used his Department phone to confirm this prior to his arrival on scene. (Dept. Ex. 12A, *BWC of Sergeant Mangiaracina*, at 39:50)

On January 7, 2025, Respondent appeared for his official Department interview. During the interview, Respondent was asked questions about the November 25th incident. Respondent was asked whether he knew that JM [REDACTED] called 911 on November 15, 2024. He stated he was "not aware" despite that fact that he searched the Department database for 911 calls related to that incident. Respondent further claimed, at the interview, that he did not see anything when he queried the job. Respondent was asked later in the interview whether when he told the duty captain on November 25th, that he was unaware whether JM [REDACTED] called 911 on November 15th. Respondent denied making a false statement to the duty captain and instead replied that he was just "not exactly sure" at the time that he made that statement to the duty captain. Later during the same interview, Respondent was confronted with the audits of his 911 queries and

after further questioning, Respondent finally conceded that he was not honest with the duty captain.

At trial, Respondent admitted to wrongfully utilizing Department computer systems and making inquiries unrelated to office Department business on various dates (Specifications 4, 9, 12). Specifically, Respondent admitted that he used his Department-issued cell phone to check whether JM called 911 after the November 15th and November 25th incidents. Respondent also acknowledged that he used the Department computer system on various dates between March 3, 2024, and December 4, 2024, to track the license plate of a fellow member of service, because he believed that JM and that officer were dating. In addition, Respondent admitted that he tracked JM's friend's vehicle, during the same period, to find out where JM was headed. Respondent also took responsibility for failing to safeguard his firearm on November 25, 2024 (Specification 6) by leaving it unattended in the trunk of his car.

JM

JM testified that she only appeared for the hearing before this Tribunal because she was directed to do so pursuant to a subpoena that she received from the Department Advocate's Office. She explained that she did not want to testify against Respondent, with whom she is "working things out," but she felt guilty that things "went too far" because of what she did. JM further explained that she did not know that the Department was seeking termination of Respondent until that day. (Tr. 26, 31-32)

JM testified that she and Respondent have had an "on and off again" relationship since April 2024, but to the best of her recollection on November 15, 2024, she and Respondent were broken up. On November 15th, she and her friend were at JM's

apartment, and they were planning to go out. According to JM [REDACTED] as they were leaving her apartment, she was “surprise[d]” to see Respondent outside in his car because she “forgot she invited him over” earlier that day. As she approached Respondent’s vehicle, Respondent lowered the window and asked to speak to her. JM [REDACTED] told Respondent she was leaving and asked him to move his car because he was blocking her friend’s car. JM [REDACTED] proceeded to enter her friend’s car. (Tr. 26, 28, 36, 41-44, 46 48)

JM [REDACTED] recalled that she was sitting in the car for approximately five minutes while her friend did her makeup. During that time, Respondent remained in his car, double parked and blocking them in. According to JM [REDACTED] she decided to call 911 because Respondent did not move his car when they were ready to leave. While JM [REDACTED] was on the phone with the 911 operator, Respondent drove away, so she hung up the phone. (Tr. 60-62; Dept. Ex. 3A) When asked why she thought calling 911 was the “easiest way to get rid of him,” JM [REDACTED] replied, “I think I was just angry at him at that point.” (Tr. 103-04)

JM [REDACTED] testified that ten days later, on November 25, 2024, she came home from the bar at approximately 0400 hours. She claimed that while she was at the bar, she saw Respondent and told him that they would “talk later.” At first, JM [REDACTED] testified that she communicated this verbally, then claimed she might have communicated this via text message. She was not certain one way or the other. However, JM [REDACTED] recalled inviting Respondent over to her apartment that night. (Tr. 63-66)

At trial, JM [REDACTED] was shown video surveillance footage from November 25, 2024. (Dept. Exs. 6A-6C) She admitted that she was intoxicated when she got home from the bar that night and asserted that the details of what transpired with Respondent were murky. JM [REDACTED] recalled that Respondent rang the doorbell of her apartment, and she met him in the vestibule.

She testified that she told Respondent to leave because she was “drunk and tired” and they could talk later. Despite her communicating that she wanted Respondent to leave, he did not do so because “he wanted to talk.” (Tr. 67-69)

JM [REDACTED] was asked if she recalled that Respondent took her phone away from her while they were talking in the vestibule area. JM [REDACTED] replied:

He didn't take it away. I got a message from my friend saying that she got home. So, I was looking at it. And then he got -- he took it because I was looking at it, at the phone, and I wasn't paying attention to what he was saying. It wasn't like he grabbed it or anything. (Tr. 69)

JM [REDACTED] denied that she told Respondent she would call 911 if he did not leave. She asserted that she did not “run” out of her building, but that she walked out of her building and could not recall going out into the street to get assistance. JM [REDACTED] did, however, remember that an unidentified male bystander escorted her back into her building because she was “losing [her] balance.” JM [REDACTED] confirmed that once she was back in her apartment, she called 911 but that she did so only because she was “angry,” “overwhelmed” and she was trying to get back at Respondent. She added that she did not feel in physical danger during her interaction with Respondent and characterized their encounter as just an “argument.” (Tr. 71-73, 107)

JM [REDACTED] was confronted about several discrepancies between her trial testimony and what she told investigators when they interviewed her shortly after the incident occurred, as well as what she wrote and what was recorded in the Domestic Incident Report (“DIR”). (Dept. Ex. 9) For example, JM [REDACTED] was asked whether she remembered writing in the DIR that Respondent took her phone. JM [REDACTED] acknowledged that she filled out portions of the DIR but suggested that it was not accurate because she was “freezing,” “drunk” and “wanted to be done with it.” JM [REDACTED] was also asked whether she recalled telling the investigators that interviewed her on the night in question that she had told Respondent to leave or she would call

911. JM [REDACTED] retorted that she lied to investigators that night because she was mad. (Tr. 72, 96, 99-100)

It is worth noting that despite JM's [REDACTED] assertions to the contrary at trial, the DIR that was completed on November 25th clearly states that Respondent showed up to JM [REDACTED] [REDACTED]'s residence and chased her down the street. It further states that Respondent removed JM's [REDACTED] cell phone from her and prevented her from calling 911.¹ Moreover, on page 2 of the DIR, in the section that asks the complainant specific questions about the "suspect," JM [REDACTED] [REDACTED] was asked whether the suspect is "violently and constantly jealous of you" and whether "the physical violence increased in frequency and severity over the past 6 months." The "yes" box next to each of those questions were checked. (Dept. Ex. 9)

Sergeant Moses Jang

Internal Affairs Bureau ("IAB") Investigator, Sergeant Moses Jang, testified that he was assigned to investigate Respondent regarding an off-duty domestic incident that allegedly occurred on November 25th. Pursuant to this investigation, Sergeant Jang interviewed JM [REDACTED] [REDACTED] and learned that there was a prior incident on November 15th, where she had also called 911. Sergeant Jang further ascertained that Respondent failed to remain on scene following either of the two off-duty incidents. He added that Respondent also did not make any notifications to the Department following either incident. (Tr. 117-20)

As part of his investigation, Sergeant Jang obtained video surveillance from JM's [REDACTED] [REDACTED] apartment building from November 15th and 25th. (Dept. Exs. 2A-2D and 6A-6C) He also procured ICADs for the 911 calls made on each of the incident dates (Dept. Exs. 3A, 7A and 8A) and learned that JM [REDACTED] called 911 at approximately 0138 hours on November 15th

¹ This information is contained in the portion of the DIR that was filled out by the officer, not JM's [REDACTED] handwritten statement.

and at 0455 hours and again at 0510 hours on November 25th. Based on the times of each of the 911 calls and his review of the video surveillance footage from JM's apartment building, Sergeant Jang concluded that the 911 calls were made a short time after the incidents occurred. (Tr. 121, 126, 134)

Additionally, Sergeant Jang testified that he conducted a Domain Awareness System ("DAS") audit on the ICADs from November 15 and November 25 as part of his investigation. This audit revealed that Respondent used his Department phone to look up the 911 calls made by JM. Specifically, the audit shows that Respondent searched for 911 calls on November 15th starting at 0138 hours and did so about 49 times on that date. Additionally, Respondent searched 911 calls on November 25th, starting at 0520 through approximately 0732 hours on that same day. Respondent conducted this search approximately 153 times. (Dept. Ex. 10B) Respondent's 911 searches occur almost immediately after each incident occurred.

In addition to the information ascertained from above-mentioned the DAS audit, Sergeant Jang also uncovered other inquiries Respondent made using the Department's computer system. Specifically, Respondent ran two different license plate numbers in the Department database. One license plate number is registered to a fellow member of service, and the other license plate number is registered to JM's friend. The audit search results further revealed that Respondent searched JM's vehicle approximately 168 times between March and December of 2024. (Dept. Exs. 13A, 13B) Additionally, Respondent searched his fellow officer's vehicle approximately 127 times between September and December of 2024. (Dept. Exs. 14A, 14B)

Sergeant Jang's investigation also led him to review the body worn camera ("BWC") of Sergeant Mangiaracina who responded to the scene on November 25th. (Dept. Ex. 12A) The

BWC captures Respondent being interviewed by a duty captain on scene at approximately 0720 hours. After Respondent explained what transpired that day, the duty captain asked him whether something happened between Respondent and his girlfriend the week prior that caused JM to call 911. Respondent replied: "Not that I know of. We got into argument. She didn't say she was going to call but I left so I don't know if she went through with it." (*Id.* at 39:48-39:55, Tr. 139-41)

At trial, Sergeant Jang testified that he conducted an official interview of Respondent on January 7, 2025. He asserted that during the interview, Respondent confirmed that he used his Department-issued phone to search for 911 calls made by JM. However, Respondent avowed that he did not actually "click" on the jobs. At the outset of the interview, Respondent also denied making false statements to the duty captain on November 25th. However, when presented with evidence to the contrary, specifically the search audits, Respondent admitted that he knew, as of November 15, 2024, that JM called 911. Respondent ultimately acknowledged, at his official interview, that he had been untruthful to the duty captain on scene on November 25th. (Tr. 144-51)

Respondent

Respondent testified that he and JM had been dating on and off since about April 2024. He confirmed that as recently as September 2025, they resumed their relationship after a long time apart. According to Respondent, after the November 25th incident, he did his best to avoid JM. Respondent asserted that he conducted the Department database searches of JM's friend's vehicle to "avoid running into her" as this friend is the person who most often drives JM around. Respondent also admitted that he used the Department database to conduct searches on a fellow officer's vehicle because he suspected that

JM [REDACTED] was romantically involved with this officer. Respondent claimed that he is not a “confrontational person,” so he was not going to approach this officer about seeing JM [REDACTED]. Instead, Respondent, “did the wrong thing” and took it upon himself to conduct his own investigation to confirm his suspicions. (Tr. 165-68)

With regard to November 15th incident, Respondent stated that he went to JM's [REDACTED] apartment based upon an earlier conversation in which he and JM [REDACTED] agreed that he would go over there after work. He recalled that when he saw JM [REDACTED] exit her apartment building, he decided to double-park next to her friend's car because there was no other available parking. Respondent asked JM [REDACTED] if they could talk, but she seemed disinterested. They spoke for about two minutes before JM [REDACTED] got into her friend's car. Respondent claimed that he waited for a few minutes longer in his car, still double parked next to her friend, to see if JM [REDACTED] would change her mind. When it became clear that she did not want to talk, Respondent drove away to “avoid any further confrontation.” Respondent perceived that JM [REDACTED] appeared “annoyed” when she got into her friend's car and he got the impression that JM [REDACTED] might call 911. He proceeded to search the Department database to ascertain whether JM [REDACTED] in fact called 911 and discovered that she had. (Tr. 168-71)

Respondent testified that on November 25, 2024, he saw JM [REDACTED] at a bar and asked her if they could talk later. According to Respondent, JM [REDACTED] agreed to speak with him later, so he went to her house. Respondent recalled that after he rang JM's [REDACTED] apartment doorbell, she came to the lobby and appeared “like she had just woken up” and she was “clearly intoxicated.” (Tr. 176) They spoke about the state of their relationship. At some point, Respondent and JM [REDACTED] migrated outside to continue their conversation before ultimately returning to the apartment.

Respondent recollected that JM received a text message on her cell phone. He elaborated that "when she's on her phone, she doesn't pay attention to what's going on around her. So that's when [he] decided to take it away from her." Respondent acknowledged that he and JM began "wrestling" over the phone but asserted that it was not "aggressive." Respondent admitted that was the point when JM slipped and fell just outside the main entrance of the apartment. Respondent maintained, however, that this type of interaction is "typical" for them. Respondent contended that: "She was raised with like brothers, so it's something that we've done before. Not aggressive, but more in a playful manner. Not to the point where I'm trying to hurt her or she's trying to hurt me." (Tr. 177-79)

Respondent testified that the verbal dispute between him and JM continued once they went back outside. According to Respondent, while they were outside a male bystander approached them because they were "being kind of loud" and asked what was going on. Respondent suspected that because JM was stumbling, the male bystander could tell she was intoxicated and offered to walk JM to her building, even though Respondent was with her already. Respondent did not object. Once the bystander escorted JM back into the building, she told Respondent that he should go home or she would call 911. Respondent left to avoid further issues. (Tr. 179-80)

Shortly after he left, Respondent conducted a "DAS lookup" to ascertain whether JM called 911. Respondent confirmed that she did in fact call 911 and reported the incident as a "dispute." After discovering this information, Respondent called his union delegate seeking advice. Respondent explained what happened to his delegate but did not immediately return to the scene. (Tr. 180-81)

As Respondent was driving home, he received a phone call from a patrol supervisor who informed him that he needed to return to the scene. Respondent drove back to JM's [REDACTED] apartment where he was greeted by a patrol sergeant and duty captain. Respondent testified that in that moment he was "nervous, scared [and] embarrassed." Respondent admitted that because he was "not thinking straight," he "wasn't honest" during his conversation with the duty captain. (Tr. 181-82)

Respondent avowed that the reason he did not make any notifications or remain on scene after the incidents that occurred on November 15th and 25th was because he did not believe they qualified as "off-duty incidents" pursuant to the Patrol Guide definition. He was under the impression that by simply going home, "it would be the end of it." In Respondent's view, these incidents were arguments that were not out of the ordinary for his relationship with JM [REDACTED] so he did not see a need to report them. (Tr. 183-184)

At trial, Respondent also admitted that he had his off-duty firearm in the trunk of his vehicle on November 25th. He explained that he did not go home immediately after work, so he believed the safest place to store his firearm while he was at the bar, was in the trunk of his Tesla. Respondent described that his trunk has an interior storage compartment, which is where he stored his firearm. (Tr. 184)

Specification 1: Preventing JM [REDACTED] from Leaving Her Home

It is undisputed that on November 15, 2024, Respondent double-parked his vehicle in front of JM's [REDACTED] friend's car. Respondent claimed that he parked there because JM [REDACTED] had agreed to him coming by after work when he asked her earlier that day. He asserted that when he arrived, JM [REDACTED] was no longer interested in speaking with him because she was going out with her friend. (Tr. 168-69)

Respondent did not attempt to look for an open parking spot to get out of his car and speak with JM. Instead, he deliberately double-parked his car in front of JM's friend's car, "hoping that she JM would come out and speak," but knowing full well that her friend's car was blocked by his car, thereby preventing them from leaving the premises. According to his trial testimony, Respondent stated that JM never threatened to call 911 if he did not move his car. Respondent claimed that he simply decided to leave of his own volition, but he had a feeling that she would call. (Tr. 169-71)

This Tribunal does not credit Respondent's self-serving account. In fact, Respondent's own actions undermine his version of events. The evidence shows that JM called 911 at 01:38:19. (Dept. Ex. 10A) Almost simultaneously, Respondent reacts by using his Department-issued cell phone to search for 911 calls, starting at 01:38:44 and continuing the search until approximately 02:13:58. (Dept. Ex. 10B)

Respondent would have this Tribunal believe that it was a mere coincidence that he began checking his Department phone for 911 calls at the exact moment that JM was on the phone with a 911 operator. This Tribunal finds Respondent's testimony disingenuous and unpersuasive. Respondent's action on November 15th demonstrates his consciousness of guilt, in that he knew he was preventing his ex-girlfriend from leaving the premises by blocking her friend's vehicle with his car and only leaving after he confirmed that she called 911.

In sum, Respondent acted in a manner that is contrary to the good order, efficiency, or discipline of the Department. Accordingly, I find Respondent Guilty of Specification 1.

Specifications 2, 3, 7 & 8: Failure to Remain on Scene and Request Response of Patrol Supervisor (November 15 and November 25, 2024)

Respondent is charged with failing to remain on the scene of an off-duty incident and failing to request that the patrol supervisor respond on two separate occasions, November 15 and November 25, 2024. Patrol Guide 212-32 requires an off-duty member of the service who is involved in an unusual police occurrence to, “[r]emain at the scene of incident when feasible and consistent with personal safety” and “[r]equest response of patrol supervisor, precinct of occurrence.” It is undisputed that Respondent left the scene of this off-duty incident without requesting a patrol supervisor.

Respondent testified that on November 15, 2024, he did not follow the mandates of Patrol Guide because when he checked the 911 call, he “didn’t see his name or any detail,” so he thought he could “just let it slide.” (Tr. 173) As Respondent was a participant in an unusual off-duty occurrence, he was required to remain at the scene and call for a patrol supervisor in order to facilitate a preliminary investigation. There is no evidence that it was unsafe for Respondent to remain at the scene, and it is undisputed that once he left the scene, he did not make any notifications to the desk officer of the subject precinct. The Tribunal finds that Respondent willfully ignored the mandates of the Patrol Guide because his name was not provided in the 911 call made by his ex-girlfriend, so he thought he could get away with it.

Similarly, following the November 25th incident with his ex-girlfriend, he used the Department database to search for 911 calls made by JM ██████████. However, unlike the November 15th incident, this time, JM ██████████ did provide Respondent’s name and other pertinent information about the events that transpired between them to the police. Respondent was therefore aware that police would be dispatched to JM’s ██████████ home to further investigate the incident.

According to Respondent's testimony, the first thing he did after discovering this information was call his delegate for advice. Respondent's action demonstrates that he understood the gravity of the situation which is why he sought assistance from his delegate. Nonetheless, he ignored the mandates of the Patrol Guide and continued driving home, instead of returning to the scene or making appropriate notifications. As per his own testimony, Respondent did not return to the scene until he was ordered to do so by a patrol supervisor.

For the aforementioned reasons I find Respondent Guilty of Specifications 2, 3, 7 and 8.

Specification 5: Physical Altercation and Removing Cellphone to Prevent 911 Call

Respondent is charged with engaging in a physical altercation with JM and removing her cell phone to prevent her from calling 911. For the reasons set forth below, the Tribunal finds that the Department Advocate proved by a preponderance of the credible evidence that Respondent engaged in the charged misconduct.

This Tribunal carefully reviewed the video surveillance footage of the November 25th incident. (Dept. Ex. 6A-6C) Although the footage does not have accompanying audio, it is evident from viewing the interaction between Respondent and JM that it was contentious and uncordial. It appears that Respondent's presence is unwanted by JM given that she walks away from him a few times and attempts to get Respondent to leave her apartment building. (Dept. Ex. 6B at 42:15-42:42) While this Tribunal would not characterize Respondent's behavior as an act of physical violence, it appears to be an attempt to intimidate or harass JM. It is also quite clear that Respondent grabs JM's phone out of her hand and that a struggle ensues as he tries to keep it away from her. (Dept. Ex. 6B at 44:42-45:34) While Respondent and JM are outside of her building, it appears that she attempts to walk away from him several times and he continues to pursue her. (Dept. Ex. 6C at

48:01) The incident culminates in a male bystander intervening on JM's behalf and escorting her to her building. (Dept. Ex. 6B at 50:55-52:08) Respondent stays behind on the sidewalk while this unknown male walks JM to the front door of her building. (Dept. Ex. 6C at 51:29)

JM testified that on November 25th, she was highly intoxicated, so her recollection of the events is limited. Indeed, in the surveillance videos, JM appears inebriated as her gait is unsteady. She did, however, recall that Respondent took her phone from her hand. At trial, JM denied that Respondent took her phone to prevent her from calling 911. She claimed Respondent took it because she was not paying attention to him. However, when she was interviewed by Sergeant Jang shortly after the incident occurred on November 25th, JM provided a different version of events. She told Sergeant Jang that she had her phone in her hand when she told Respondent to leave or she would call the cops. JM further elaborated that as she was trying to dial 911, Respondent took her phone from her hand. Moreover, the DIR that was completed on November 25th (Dept. Ex. 9) also supports the finding that Respondent took her phone to prevent her from calling 911.

When confronted with this inconsistency at trial, JM testified that she lied to the investigators when she spoke to them after the incident because she was mad at Respondent. This Tribunal recognizes that JM has motive to fabricate details about this incident given the fact that she and Respondent are currently back in a relationship. Moreover, JM admitted that she was drunk the night of this incident, so it is plausible that with the passage of time, some of the details may be unclear. However, I find JM's testimony that Respondent was merely trying to get her attention when he took the phone from her hand unreliable and calculated to minimize her boyfriend's responsibility for the acts he committed.

Therefore, this Tribunal can only credit the portions of JM's [REDACTED] testimony that are corroborated by extrinsic evidence.

It is also worth noting that despite Respondent's attempt to minimize this encounter by characterizing it as "normal" for their relationship (Tr. 113), Respondent's immediate search for 911 calls after the November 25th incident supports a finding that he was concerned about JM [REDACTED] calling the police, thus making it more likely that Respondent would take JM's [REDACTED] phone to prevent her from reporting his conduct.

Additionally, the fact that a male bystander intervened on JM's [REDACTED] behalf when she and Respondent were arguing on the street is further corroboration that this not an ordinary interaction between two individuals. The encounter between Respondent and JM [REDACTED] was "unusual" enough to have caught the attention of a third party who then proceeded to escort JM [REDACTED] to her building without Respondent.

For the foregoing reasons, I find Respondent Guilty of Specification 5.

Specification 10: False Statement to Duty Captain

At trial, Respondent admitted to making a false statement to the duty captain that was investigating the November 25th incident. Respondent claimed he was not thinking clearly at the time he made the statement because he was "nervous" and "embarrassed" by what had transpired between him and JM [REDACTED]. Counsel for Respondent argued that while his client is not denying that the statement was made, he contends that it was made during an investigation and not an "official proceeding" pursuant to Administrative Guide 304-10. Counsel asserts that Respondent should have therefore been charged with "impeding an investigation," rather than "making a false statement." I disagree with this interpretation.

Administrative Guide 304-10 provides guidelines regarding “written and verbal statements made by members of the service during an official investigation.” This section defines a “false statement” as: “An intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” While A.G. 304-10, does not specifically define “official investigation,” this Tribunal opines that a police investigation commenced pursuant to a 911 complaint constitutes an official investigation. Moreover, the justice system relies on members of service to provide truthful and accurate information in a wide variety of contexts and circumstances, not the least of which includes instances where a domestic dispute is being investigated.

According to the DAS Audit Search Results received in evidence, (Dept. Ex. 10B) Respondent conducted a check on his department phone for 911 calls made by JM [REDACTED] on November 15th, starting at approximately 0138 hours, and again on November 25th, starting at approximately 0520 hours. Respondent met with the duty captain on scene at approximately 0720 hours on November 25th. The duty captain asked Respondent if he knew whether JM [REDACTED] called 911 after the November 15th incident, and his response was “not that I know of.” This was a blatantly false statement given that he had searched the Department’s 911 database with his Department phone just prior to his arrival on scene.

The duty captain then asked Respondent whether he knew that JM [REDACTED] called 911 today (November 25th) and he replied, “She told me she was.” Again, Respondent had reviewed the 911 database and knew that JM [REDACTED] had reported the incident to 911; that is why he called his union delegate for advice. It is extremely clear from the evidence in the record that Respondent intentionally made statements he knew to be false to the duty captain, who was

conducting an official investigation of an alleged domestic dispute. I find that Respondent's statements during this police interaction on November 25th, 2024 were made with the intent to misdirect the duty captain from reaching an investigative conclusion that Respondent knew would inculcate him.

Accordingly, I find Respondent Guilty of Specification 10.

Specification 11: Misleading Statement during an Official Department Interview

I find that the Department Advocate has met its burden of proof by a preponderance of the relevant, credible evidence that Respondent provided misleading statements during his official Department interview on January 7, 2025.

Administrative Guide procedure 304-10 defines a "misleading statement" as:

a statement that is intended to misdirect the fact finder, and materially alter the narrative by:

- a) Intentionally omitting a material fact² or facts,
- b) Making repeated claims of "I do not remember" or "I do not know" when a reasonable person under similar circumstances would recall, or have been aware of, such material facts, or
- c) Altering and/or changing a member's prior statement or account when a member of service is confronted with independent evidence indicating that an event did not occur as initially described, will generally be considered a misleading statement.

(A.G. 304-10, Page 1).

I have carefully reviewed the audio recording and transcript of Respondent's January 7, 2025, official Department interview, conducted by Lieutenant Cruz and Sergeant Jang³

² A "material fact" is defined by A.G. 304-10 as: "A significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue, and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail."

³ The Department Advocate marked this exhibit as Department Exs. 15A and 15B. It was not, however, formally received into evidence. In order to provide the Police Commissioner with a full and complete record in this case, the Tribunal is receiving these items in evidence as Tribunal's Exhibits 1A and 1B.

(Tribunal's Ex. 1A and 1B, respectively). During this interview, the investigators asked Respondent questions relevant to the incidents that occurred on November 15th and 25th. They specifically asked Respondent whether he conducted 911 searches using his Department-issued phone. At the beginning of the interview, Respondent admitted that he used his department phone on November 25th to ascertain whether his ex-girlfriend called 911. (Tribunal Ex. 1B at 16) However, later when the investigators asked Respondent if JM [REDACTED] called 911 on November 15, he responded: "She said she was going to . . . I don't know if she actually went through with it or not." (*Id.* at 20) After Respondent provided this answer, they challenged his assertion by confronting him with evidence regarding the 911 searches he conducted. Respondent claimed that although he did conduct a 911 inquiry on the Department database, he "didn't see anything." Respondent added that he remembered searching the 911 database but could not recall if he "clicked" on it. (*Id.* at 22, 24)

During the same interview, Respondent was asked about his interaction with the duty captain on November 25th. Specifically, Sergeant Jang asked Respondent:

"Going back to November 25th, incident Duty Captain responded to the incident and interviewed you. Duty Captain asked if you were aware about the 911 call that JM [REDACTED] made on November 15th, and you answered, not that I know of. However, the investigation showed that you did look up the job. Would you say that you lied to the Duty Captain?" (*Id.* at 24)

Respondent replied, "I was just not sure at the time." (*Id.* at p. 25) Toward the tail end of the interview, investigators showed Respondent the BWC footage depicting his interaction with the Duty Captain on November 25 as well as a detailed audit of the 911 searches he conducted on the same day. The investigators pointed out the fact that Respondent conducted a 911 query at 0520 hours and then spoke with the duty captain about two hours later. Thereafter, Respondent

retracted his previous statement and admitted that he “wasn’t honest with the duty captain” during the investigation. (*Id.* at p. 66-67)

Later in the interview, Respondent was asked about queries he conducted on RL’s [REDACTED] vehicle and on his colleague, Officer Gregory Perez’s vehicle. The investigators showed Respondent an audit of the numerous vehicle searches that he ran on RL’s [REDACTED] car. Respondent admitted that he used the Department database for his personal benefit to see where RL’s [REDACTED] vehicle was in order to determine if his ex-girlfriend was in the same area as him on different dates. Respondent claimed he was trying to avoid running into JM [REDACTED]

When asked about the basis for running his colleague’s vehicle in the Department database, Respondent initially answered that the first few times he ran Officer Perez’s plate was because his car was blocking other officers’ vehicles at the precinct, so he needed to find out who the car belonged to. Respondent then suggested that the other searches were accidental. At that moment in the interview, Respondent’s counsel asked to take a break to speak with his client. Upon returning, Respondent changed his previous response and admitted that the reason he conducted the vehicle queries on Officer Perez’s vehicle was because he suspected that JM [REDACTED] and Officer Perez were seeing each other behind his back. (Tribunal Ex. 1B at 50-54)

Based upon the credible, relevant evidence, I find that Respondent made statements at his official Department interview were intentionally misleading. He attempted to alter the narrative of what actually occurred in order to minimize his culpability.

Accordingly, I find Respondent Guilty of Specification 11.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances,

including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 6, 2020, pled guilty to three charges of wrongful use of Department computer systems and making inquiries unrelated to official Department business, and to failing to safeguard his firearm. He has also been found guilty of: (1) failing to remain on scene after an off-duty incident on two separate occasions; (2) failing to notify a patrol supervisor following an off-duty incident on two separate occasions; (3) engaging in a domestic dispute with his ex-girlfriend and removing her cell phone to prevent her from calling 911; (4) making a false statement to the duty captain investigating an off-duty incident; and (5) providing misleading statements during a Department interview.

The Department Advocate has requested that this Tribunal recommend the penalty of termination based on the facts of the case and the presence of numerous aggravating factors, while counsel for Respondent argued for a lesser penalty. It is worth noting that presumptive penalties for each of the twelve specifications would be between 105 and 125 days.⁴ As set forth in the Disciplinary Matrix, "in the event that the total number of penalty days is calculated at greater than 90 days, the presumed penalty shall be termination or forced separation" (Disciplinary Matrix, p. 13). Notwithstanding the mathematical computation of penalty days, the

⁴ The presumptive penalties for each specification are as follows: Non-Physical Acts of Domestic Violence - 30 days + other conditions as deemed appropriate (Disciplinary Matrix p. 36) (aggravating factor- Preventing a Victim from leaving premises/vehicle – 10 penalty days (Disciplinary Matrix, p. 38); Two Separate Occasions of Failing to Remain on Scene of an Off-Duty Incident- 5 days and Failing to Notify the Department of an Off-Duty Incident – 5 penalty days (Disciplinary Matrix, p. 48); Three (3) separate occasions of Computer Misuse- 10 penalty days (Disciplinary Matrix, p. 47); Failure to Safeguard Firearm (not resulting in loss) – 15 penalty days (Disciplinary Matrix, p. 41); Intentionally Making a Misleading Official Statement- 30 penalty days and dismissal probation (Disciplinary Matrix, p. 34). Moreover, the presumptive penalty for making a false official statement is Termination; the mitigated penalty is Forced Separation. (Disciplinary Matrix, p. 34).

only penalty supported by the credible, relevant evidence in the record, and consistent with good order and discipline, is termination.

Respondent has been found guilty of engaging in two domestic incidents with his on-and-off again girlfriend, both of which he failed to report. Although the incidents did not involve acts of physical violence, per se, they nonetheless included unwarranted physical contact between Respondent and JM [REDACTED] that culminated in JM [REDACTED] falling to the ground and a third party intervening and offering assistance. Moreover, Respondent's actions constituted harassment and intimidation. He then compounded the situation by making false and misleading statements during the investigation of the incidents and again at his official Department interview.

Respondent has also been found guilty of multiple specifications of misconduct involving dishonesty. The evidence in this case has established that Respondent violated the public's trust by repeatedly misusing Department resources intended for the investigation of crimes and using them for his personal benefit. While Respondent's pleas of Guilty to four of the twelve specifications meet the legal definition of acceptance of responsibility, his explanations fall short of constituting remorse or supporting a mitigated penalty.

Police officers are entrusted with the responsibility of protecting the public. Members of the service are required to maintain the standards established by the Department for their conduct, whether on or off duty. There is ample compelling evidence in the record to demonstrate that Respondent lacks the integrity, character, and good judgement required to continue serving as a sworn Member of Service.

Respondent engaged in concerning off duty conduct that triggered a series of subsequent poor decisions on his part. Rather than accepting responsibility for his misconduct, Respondent

lied to the duty captain on scene and then perpetuated his false account at the subsequent Department interview. Respondent was not forthcoming until he was confronted with irrefutable evidence of his lie. When a member of service deliberately provides false or misleading statements, it not only negatively impacts the investigation and ability for the Department to hold its employee accountable, but it also undermines the public's trust in its police. Taking into account the totality of the facts and issues in this matter, I recommend Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

DEC 18 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER ARIEL PERALTA-YASCARIBAY
TAX REGISTRY NO. 969283
DISCIPLINARY CASE NO. C-032612

Respondent was appointed to the Department on January 6, 2020. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2024, and twice received ratings of “Exceeds Expectations” for 2022 and 2023.

Respondent has no formal disciplinary history.

In connection with the instant matter, Respondent was placed on Level 1 Disciplinary Monitoring in January 2025; monitoring remains ongoing.

For your consideration.


Vanessa Facio- Lince
Assistant Deputy Commissioner Trials